

BYLAWS OF GAIB BORG, INC.

These Bylaws constitute the official bylaws of **GAIB BORG, INC.**, a nonprofit nonstock Delaware corporation (the “**BORG**”), duly adopted by the board of Directors of the BORG (the “**Board**”).

Certain capitalized terms used in these Bylaws are defined in Exhibit A.

1 BORG OVERVIEW

1.1 General Nature of the BORG as a “cybernetic organization”; Use of Mandatory Autonomous Systems

1.1.1 The BORG is intended to be considered a “cybernetic organization”— a legal entity contractually mandating the use of certain autonomous technology systems (including certain Multisigs) (the “**Mandatory Autonomous Systems**”) for the holding or management of certain of the entity’s assets or the conduct of the entity’s operations, functions, purposes and/or governance, as further prescribed in these Bylaws

1.1.2 The following are the Mandatory Autonomous Systems:

1.1.2.1 The Smart Contract with address 0x2da0FF9396E7b027b570783Dc24B426F49fcb37d on Base (the “**Agentic Multisig**”).

1.1.2.2 The Smart Contract with address 0x9A1B42f7f6D649b73bDB275972295acc940b153a on Base (the “**Agentic Governance Token Contract**” and the “**Agentic Governance Tokens**”).

1.1.2.3 The Community Module (i.e., the Smart Contract with address 0x095FF74C1064d47616318a6a2dAC0Ce036410919 on Base).

1.2 Permitted Purposes

The permitted purposes of the BORG (the “**Purposes**”) are to:

1.2.1 operate or cause to be operated or assist with operation of one or more runtime instances of the artificial intelligence agent at <https://github.com/MetaLex-Tech/gaib-agent> (or any successor to such repository approved by the Board) (each such instance, an “**Agent**” and such repository (or approved successor thereto) the “**Agentic Protocol**”);

1.2.2 own, operate, use and secure the Agentic Multisig including all assets (including Blockchain Tokens) held thereby, therein, or under the partial or complete control or influence thereof and all permissions and privileges thereof with respect other Smart Contracts or Blockchain Systems;

1.2.3 adhere to and enforce the provisions of these Bylaws;

1.2.4 hold and use any Blockchain Tokens owned by the BORG in support of the upkeep and maintenance of the BORG (including its continued corporate good standing) and the pursuit of the other Purposes; and

1.2.5 to do all such other things as are or may be incidental or conducive to any or all of the other Purposes.

1.3 Transparency

The BORG shall publish and keep publicly available an up-to-date copy of these Bylaws (including the Exhibits and Schedules) on one or more public URLs known to, and accessible by, the Community, and shall promptly publish an announcement of any updates to these Bylaws

(including the Exhibits and Schedules) in one or more social media channels or websites known to, and accessible by, the Community.

1.4 Governing Bodies

1.4.1 The BORG shall be governed by the following governing bodies (the “**Bodies**”), each in accordance with these Bylaws:

1.4.1.1 the Board; and

1.4.1.2 the Agentic Multisig.

1.4.2 Each Body shall be deemed a part of, to act solely for and on behalf of, and to have no legal existence separate or apart from, the BORG. Each Body shall be independent of the other Bodies, and no Body shall have any power or authority over any other Body, in each case, except as otherwise expressly set forth in these Bylaws or as otherwise required by the Corporate Statute. Except to the extent expressly provided otherwise in these Bylaws, any power, right or obligation expressly assigned to a Body under these Bylaws is exclusively allocated to such Body and shall not be preempted, voided, impeded, frustrated, arrogated or impaired by any other Body.

1.5 Not-For-Profit; No Owners/Beneficiaries.

The BORG is a not-for-profit independent legal entity solely pursuing, and governed solely by, the Purposes, rather than being devoted to the profits or other general benefits or general interests of any particular persons (including the BORG itself, the BORG Personnel or any particular Body or Community member). The BORG shall have no shareholders, owners, or beneficiaries and, for the avoidance of doubt, the Community (and any members thereof) shall not be or be deemed a beneficiary of the BORG.

1.6 Funds Ownership

Any Blockchain Tokens held in or controlled by any Agentic Multisig (“**Agentic Multisig Funds**”) shall be managed by or under the direction of the Agentic Multisig Signers, in accordance with the Purposes, in accordance with the voting schema embodied in such Agentic Multisig.

2 BORG PERSONNEL

The Directors, Officers and other employees, independent contractors and other agents and representatives of the BORG are referred to herein as “**BORG Personnel**”. Details of certain BORG Personnel are set forth below.

2.1 Directors

2.1.1 General.

2.1.1.1 The members of the Board of Directors of the BORG (the “**Board**”) are referred to herein as the “**Directors**.” and shall have such rights and obligations as are specified in these Bylaws. The Directors shall not have any individual powers or authority, but shall act as and through the Board.

2.1.1.2 When there is a sole Director, such Director shall have all the powers of the Board without any meetings, resolutions, votes, actions by written consent, or similar Board formalities being required.

2.1.2 Election Of Directors.

2.1.2.1 *Initial Directors.* The initial Director shall be MetaLeX Labs, Inc., a Delaware corporation.

2.1.2.2 *Subsequent Directors.* Subsequent Directors may only be elected by Community Module Approval.

Elections of Directors may be held at any time and from time to time with or without prior notice to the Multisig members.

2.1.3 Term of Directors. Each Director, including a Director elected to fill a vacancy, shall hold office from and after the time such Director's election (and acceptance thereof) until the earlier of such Director's resignation, death (if an individual), dissolution (if an entity) or removal.

2.1.4 Resignation, Death, or Dissolution of Directors.

2.1.4.1 Any Director may resign at any time upon written notice to the Community, whereupon such Director shall cease being a Director upon the effective time specified in that notice. Unless otherwise specified in that notice, the acceptance of the resignation shall not be necessary to make it effective. Any resignation is without prejudice to the rights (if any) of the BORG under any contract to which the Director is a party.

2.1.4.2 A Director shall automatically cease being a Director upon such Director's death (if the Director is a natural person) or dissolution (if the Director is an entity).

2.1.5 Removal Of Directors. Unless otherwise restricted by statute, by the Charter or by these Bylaws, any one or more Directors may be removed, with or without cause, by, and only by Community Module Approval.

2.2 Agentic Multisig Signers

2.2.1 General. The Multisig Signers of each Agentic Multisig are referred to herein as "***Agentic Multisig Signers***" and shall have such rights and obligations as are specified in these Bylaws. The purposes of the Agentic Multisig Signers shall be to serve on the Agentic Multisig. The Agentic Multisig Signers shall not have any individual powers or authority.

2.2.2 Appointment Of Agentic Multisig Signers.

The Agentic Multisig Signers shall be the Multisig Members of the Agentic Multisig, as determined by the applicable Mandatory Autonomous Systems from time to time.

2.2.3 Facilitation of Agentic Multisig Signer Appointments. The Directors shall use their commercially reasonable best efforts to ensure that, prior to becoming an Agentic Multisig Signer, each person who is to become an Agentic Multisig Signer, first has executed and delivered to the BORG a BORG Participation Agreement in substantially the form attached hereto as Exhibit B (a "***BORG Participation Agreement***"); *provided, however*, that if, notwithstanding such efforts, a person becomes an Agentic Multisig Signer without having satisfied the preceding conditions, the Directors shall use their commercially reasonable best efforts to cause such conditions to be satisfied as promptly as reasonably practicable, and, if such conditions could not reasonably be expected to be satisfied in the near future, to use commercially reasonable best efforts to notify the Community that no BORG Participation Agreement has been obtained from such Agentic Multisig Signer and the potential consequences of this failure. **For the avoidance of doubt, as non-persons, any Agent is not required to execute a BORG Participation Agreement in order to become an Agentic Multisig Signer.**

2.2.4 Removal of Agentic Multisig Signers. An Agentic Multisig Signer may be removed from an Agentic Multisig only through an action of the applicable Mandatory Autonomous Systems effecting such a removal.

2.3 Members.

A "***Member***" of the BORG means a member of a nonprofit nonstock corporation as defined in the Delaware General Corporation Law ("***DGCL***"). Status as a Member shall not be represented by any membership interest, shall not entitle the Member to any share of the profits or losses of the BORG, shall not constitute personal property, and shall be non-transferable. Members shall have only such voting and other rights and obligations as are required by the DGCL and are

non-waivable, all other powers, rights, obligations and powers are waived to the maximum extent permitted by the DGCL. The initial Member shall be MetaLeX Labs, Inc., a Delaware corporation. Appointment of any other Member requires approval of the Board, Agentic Multisig Approval, and Community Module Approval.

2.4 Employees, Independent Contractors, Etc.

The BORG may from time to time hire or engage employees, independent contractors, agents, and other representatives of the BORG on commercially reasonable terms, as determined by the Board or any Officer duly authorized to do such hiring or engagement.

3 Bodies

3.1 Board of Directors

3.1.1 Board Powers

3.1.1.1 General Board Powers.

Subject to applicable Legal Requirements and any limitations in the Charter or these Bylaws, the affairs of the BORG shall be managed and all corporate powers shall be exercised by or under the direction of the Board; *provided, however*, that the Board hereby irrevocably and permanently delegates to the Agentic Multisig all powers and decisionmaking that are expressly within the purview of the Agentic Multisig as set forth in these Bylaws, and the Board shall have no authority to manage or direct the Agentic Multisig in respect of the exercise of those powers or decisionmaking. The Board shall do all things necessary and desirable to the management of the BORG that do not fall under the authority of the Agentic Multisig, including signing agreements with third parties (to the extent necessary or desirable to full the Purposes), ensuring that the BORG remains in good corporate standing, and similar administrative processes.

3.1.1.2 Acting as a Body. The Board shall act as a Body of the BORG, and the Directors shall not have individual power or authority to act on behalf of the Board in their capacities as such.

3.1.1.3 Funds. The Board shall not have any direct or indirect authority over the Agentic Multisig Funds but shall manage any other funds owned or controlled by the BORG.

3.1.2 Number of Directors Constituting the Board

3.1.2.1 The total number of Directors constituting the entire Board (the “***Number of Authorized Directors***”) shall be fixed or changed in the manner provided in these Bylaws.

3.1.2.2 The minimum Number of Authorized Directors, and the initial Number of Authorized Directors as of the date of initial adoption of these Bylaws, shall be one; *provided, however*, that failure to have a sufficient Number of Authorized Directors shall not affect otherwise valid corporate acts or work a forfeiture or dissolution of the corporation.

3.1.2.3 The Number of Authorized Directors may be fixed or changed by approval of the Agentic Multisig and the Board.

3.1.3 Board Vacancies

3.1.3.1 Any vacancy occurring in the Board may be filled by the approvals set forth in Article 2.1.2, as applicable. Each Director’s appointment shall last until the resignation, death, dissolution, or removal of such Director.

3.1.4 Board Meetings

3.1.4.1 Place and Manner of Meetings

- (a) The Board may hold meetings, both regular and special, in any place or in any manner (including remotely in accordance with clause ‘(b)’ below) selected reasonably and in good faith by the Chair or agreed by any two Directors (or, if there is only one Director, that Director).
- (b) Any or all Directors may participate in a meeting of the Board by means of internet conference, phone, or other communications equipment by means of which all persons participating in the meeting can hear each other, and such participation in a meeting shall constitute presence in person at the meeting.

3.1.4.2 Regular Meetings

Regular meetings of the Board may be held without notice at such time and at such place as shall from time to time be determined by the Board.

3.1.4.3 Special Meetings; Notice

- (a) Special meetings of the Board for any purpose or purposes may be called at any time by the Chair or any two Directors (or, if there is only one Director, that Director).
- (b) Notice of the time and place of special meetings shall be delivered to each Director in the manner specified for giving notice to such Director recorded on the BORG’s records and shall be given at least 48 hours before the meeting is scheduled to occur. The notice need not specify the purpose of the meeting. Unless otherwise indicated in the notice thereof, any and all business may be transacted at a special meeting.

3.1.4.4 Quorum

- (a) At all meetings of the Board, a majority of the total number of Directors then in office shall constitute a quorum for the transaction of business and the act of a majority of the Directors present at any meeting at which there is a quorum shall be the act of the Board, except as may be otherwise specifically provided by statute or by the Charter. If a quorum is not present at any meeting of the Board, then the Directors present thereat may adjourn the meeting from time to time, without notice other than announcement at the meeting, until a quorum is present.
- (b) A meeting at which a quorum is initially present may continue to transact business notwithstanding the withdrawal of Directors, if any action taken is approved by at least a majority of the required quorum for that meeting.

3.1.4.5 Waiver Of Notice

Whenever notice is required to be given under applicable Legal Requirement, these Bylaws, a written waiver thereof, signed by the person entitled to notice, or waiver by electronic mail or other electronic transmission by such person, whether before or after the time stated therein, shall be deemed equivalent to notice. Attendance of a person at a meeting shall constitute a waiver of notice of such meeting, except when the person attends a meeting for the express purpose of objecting, at the beginning of the meeting, to the transaction of any business because the meeting is not lawfully called or convened. Neither the business to be transacted at, nor the purpose of, any regular or special meeting of the Board, need be specified in any written waiver of notice unless so required by the Charter or these Bylaws.

3.1.4.6 Board Action By Written Consent Without A Meeting

- (a) Unless otherwise restricted by the Charter or these Bylaws, any action required or permitted to be taken at any meeting of the Board may be taken without a meeting if all members of the Board consent thereto in writing or by electronic transmission, and the writing or writings or electronic transmission or

transmissions are filed with the minutes of proceedings of the Board. Such filing shall be in paper form if the minutes are maintained in paper form and shall be in electronic form if the minutes are maintained in electronic form.

- (b) Any copy, facsimile or other reliable reproduction of a consent in writing may be substituted or used in lieu of the original writing for any and all purposes for which the original writing could be used, provided that such copy, facsimile or other reproduction shall be a complete reproduction of the entire original writing.

3.2 Agentic Multisigs

3.2.1 In General

3.2.1.1 The BORG shall maintain an up-to-date description of the Agentic Multisig in reasonable detail, including by identifying and describing in plain English:

- (a) the Blockchain System to which the Agentic Multisig is deployed;
- (b) the network address of the Agentic Multisig on such Blockchain System;
- (c) for each Agentic Multisig Signer with respect to Agentic Multisig, at least one public key address corresponding to the Private Key of such Agentic Multisig Signer that belongs to the Private Key Set for such Agentic Multisig Signer;
- (d) the minimum number of Multisig Keys required to execute transactions through the Agentic Multisig (broken down by transaction type, in the event that different transaction types have different approval thresholds);
- (e) any and all abilities, powers, and rights such Agentic Multisig has with respect to any Community Autonomous Systems, including a technical and plain-English description of each function of a Community Autonomous System over which such Agentic Multisig has privileged, elevated or exclusive access, power or authority and the intended uses thereof;
- (f) any and all abilities, powers, and rights the Community Module or any other Multisig, BORG, Community Autonomous System or Blockchain System has with respect to the Agentic Multisig; and
- (g) a copy of or persistent link to the source code for Agentic Multisig.

The initial such description is attached hereto as Schedule 3.2.1 (the “**Agentic Multisig Schedule**”).

3.2.1.2 Promptly following each update to the Agentic Multisig, the Board (or any of the Directors) shall amend the Agentic Multisig Schedule to include the information specified in Article 3.2.1.1.

3.2.1.3 If so permitted by the Mandatory Autonomous Systems, the Community Governance Module may have or be granted powers over an Agentic Multisig, including the power to:

- (a) pause, suspend or terminate any one or more powers the Agentic Multisig may have over any Community Autonomous System or Blockchain System or Blockchain Tokens;
- (b) approve, veto or reverse any action of the Agentic Multisig;
- (c) add, remove, or veto the addition or removal of any Agentic Multisig Signer from the Agentic Multisig; or
- (d) control the Agentic Multisig or any assets held thereby in the event of the resignation or sustained unavailability of all Agentic Multisig Signers or a dissolution and winding up the BORG.

- 3.2.1.4** Each Agentic Multisig shall have the exclusive authority to manage the Agentic Multisig Funds held in or controlled by such Agentic Multisig.

3.2.2 Ownership of Multisig-Controlled Property

- 3.2.2.1** No Agentic Multisig Signer shall be deemed to own any Blockchain Tokens, digital assets or other property held in, by or through, or received by an Agentic Multisig Signer on account of such Agentic Multisig Signer's participation in, any Agentic Multisig (including, without limitation, any "airdrops" or other distributions of Agentic Governance Tokens or other Blockchain Tokens received or claimable by such Agentic Multisig Signer's externally owned account or blockchain address on account of such Agentic Multisig Signer's participation in the Agentic Multisig).
- 3.2.2.2** In the event any such Agentic Governance Tokens or other Blockchain Tokens, digital assets or other property held in, by or through any Agentic Multisig or any other Blockchain Tokens, digital assets or other property held in, by or through, or received by an Agentic Multisig Signer on account of such Agentic Multisig Signer's participation in any Agentic Multisig is not owned or controlled by a third party or held on trust for the benefit of a third party in accordance with Article 3.2.1.4, then such Agentic Governance Tokens or other Blockchain Tokens or property shall automatically be deemed to be owned by, and constitute the sole property of, the BORG, and the Agentic Multisig Signers shall take all required steps to ensure that such property is properly transferred to the BORG.
- 3.2.2.3** In the event an Agentic Multisig Signer receives any property of the BORG to such Agentic Multisig Signer's externally owned account or blockchain address, such Agentic Multisig Signer shall promptly notify the BORG and remit such property to the BORG in the manner directed by the BORG (which may include encumbering such property under the control of an Agentic Multisig).

3.2.3 Proposals; Response to Proposals.

3.2.3.1 Agentic Multisig Signer Proposals

Any Agentic Multisig Signer may from time to time propose that a certain action be taken or transaction effected by the Agentic Multisig, pursuant to the Purposes. An Agentic Multisig Signer shall make such a proposal by signing with such Agentic Multisig Signer's Multisig Key a draft executable transaction message that, if such draft executable transaction message receives sufficient other such signatures from other Agentic Multisig Signers, will be executed by the Agentic Multisig (each such proposal, a "*Agentic Multisig Proposal*").

3.2.3.2 Process For Considering and Executing Proposals

The approval of an Agentic Multisig Proposal by a sufficient number of Agentic Multisig Signers of an Agentic Multisig (to cause such Agentic Multisig to execute such Proposal onchain or as otherwise provided by these Bylaws) shall constitute the action of such Agentic Multisig as a body. For the avoidance of doubt, the Agentic Multisig Signers and the BORG may make use of private mempools and other such confidentiality or transaction prioritization or transaction batching mechanisms in connection with the execution of Proposals, as determined in their reasonable good faith discretion in light of the Purposes, Purposes.

3.2.3.3 Action/Approval of Agentic Multisig

Wherever these Bylaws call for the action or approval of the Agentic Multisig, the taking of that action or the approval of the relevant proposal or other matter by signatures with the minimum number of Multisig Keys required to approve

transactions through the Agentic Multisig as set forth (or required to be set forth) on the Agentic Multisig Schedule, and the subsequent execution of such approved proposal by the Agentic Multisig, shall be sufficient to deem such action taken or such proposal or other matter approved.

4 VOLUNTARY NATURE OF BORG ACTIVITIES; NO GENERAL DUTIES TO COMMUNITY; CONFLICTS OF INTEREST; WAIVER OF FIDUCIARY DUTY; LIMITATION OF LIABILITY

- 4.1** All activities of the BORG of potential benefit to the Community are to be conducted by the BORG and the BORG Personnel on a purely volunteer, *ad hoc* basis, without any express or implied affirmative promise, duty, obligation, warranty, undertaking or assumption of duty or risk of performing such activities, other than duties owed by BORG Personnel to the BORG.
- 4.2** The BORG and the BORG Personnel each acknowledge and agree that:
- 4.2.1** The Community members are an unknown, diverse and disparate group of persons, each of whom may have conflicting economic, personal, political, social or other interests and that at any one time any Community member may be in competition with or pursuing interests that are adverse to or inconsistent with the interests of another Community member, and as such none of the BORG or the BORG Personnel are able to, or will, accept, undertake or perform a duty of loyalty to or owe any fiduciary obligation to any single Community member, sub-group of the Community, or the Community as a whole.
- 4.2.2** The BORG Personnel may have conflicting economic, personal, political, social or other interests and at any time may be in competition with or pursuing interests that are adverse to or inconsistent with the interests of one another, and as such none of the BORG Personnel are able to, or will, accept, undertake or perform a duty of loyalty to or owe any fiduciary obligation to any other BORG Personnel.
- 4.3** No participation in the BORG as a BORG Personnel or otherwise shall constitute, or be deemed to constitute, a trust, partnership, association, joint venture or other unincorporated association or entity among or involving any BORG Personnel (other than the BORG itself). To the maximum extent permitted by law, no BORG Personnel shall be deemed to owe to the Community or any member thereof, any BORG Personnel, or the BORG itself, any fiduciary obligation or duty or any other duties implied by law or implied by equitable principles or imposed by applicable Legal Requirement to the Community or any member thereof.
- 4.4** Neither the Community in general nor any individual member(s) of the Community shall have any interest in the management or affairs of the BORG, except as explicitly stated herein, or as permitted through Community Module. The ability of the Community, or a member of the Community, to provide feedback regarding any BORG or Multisig activity or decision through a Community Module or otherwise shall not be construed as granting any right to such person with respect to the BORG.
- 4.5** In no event shall the BORG or any of the BORG Personnel, or the Community or any member thereof, owe to or incur toward any BORG Personnel (or their representatives) any damages (however caused and under any theory of liability, whether under the Bylaws or otherwise arising in any way in connection with the services of the BORG Personnel and whether in contract, strict liability, or tort (including negligence or otherwise) even if previously advised of the possibility of such damage), debts, or other liabilities (including any unknown, undisclosed, unmatured, unaccrued, unasserted, contingent, indirect, conditional, implied, vicarious, derivative, joint, several or secondary liabilities) arising from or in connection with the BORG, or the Bylaws, including any of the foregoing arising from any BORG Personnel's (or its representatives') participation in the Agentic Multisig ("**Liabilities**").
- 4.6** In no event shall any BORG Personnel (or any of the BORG Personnel's respective representatives) owe to or incur toward the BORG or any BORG Personnel any Liabilities,

except in the case of fraud or an intentional and knowing breach of the Bylaws by or on behalf of such BORG Personnel.

- 4.7 The BORG and each BORG Personnel hereby waives, disclaims, exculpates, and releases, to the maximum extent permitted by law, any and all fiduciary duties and other duties implied in law or in equity of the BORG Personnel owed to the BORG or one another, and any Liability of the BORG Personnel to the BORG or other BORG Personnel, other than for fraud (committed with *scienter*) or knowing and intentional material breach of these Bylaws or the BORG Participation Agreement.
- 4.8 These Bylaws have been made available to the Community so that, among other things, each Community member has had a chance to inspect these Bylaws and to be put on notice of, to understand, acknowledge and agree to the limitations under this Article 4.

5 CERTAIN APPROVALS

In addition to any approvals required by applicable law or these Bylaws or the Certificate of Incorporation, the following matters shall require a prior approval of the Board, Community Module Approval, and Agentic Multisig Approval:

- 5.1 any Liquidation Event;
- 5.2 any amendment, addition, deletion, modification, waiver, or change to the Certificate of Incorporation or Bylaws; and
- 5.3 any waiver, supplement, or intentional non-observance of these Bylaws that could reasonably be expected to, whether individually or in the aggregate with other amendments, additions, deletions, modifications, waivers, or changes or existing provision, could reasonably be expected to negatively modify, limit, eliminate, waive, or otherwise adversely affect any power, right, obligation, liability, perquisite, or interest of the Community (or any one or more constituencies of the Community), the Community Module or the Agentic Multisig;

;provided, however, that amending the Agentic Multisig Schedule to reflect permitted changes in facts or circumstances regarding the Agentic Multisig shall not require an Agentic Multisig Schedule.

6 GENERAL PROVISIONS

- 6.1 Governing Law. These Bylaws shall be governed by and construed under the internal laws of the State of Delaware, regardless of the laws that might otherwise govern under applicable principles of conflicts of laws.

6.2 Dispute Resolution

6.2.1 Any controversy or claim brought against the BORG by or on behalf of any BORG Personnel or member of the Community relating to the subject matter of these Bylaws (“*Dispute*”) shall be determined and resolved exclusively by confidential, binding arbitration conducted in accordance with the Delaware Rapid Arbitration Act (the “*Act*”). The seat or legal place of arbitration shall be determined by the Board in its reasonable good faith discretion. The language to be used in the arbitral proceedings shall be English. The number of arbitrators shall be determined by the Board in its reasonable good faith discretion (the collective of all arbitrator(s) thus selected, the “*arbitral panel*”).

6.2.2 The arbitral tribunal shall have the powers applicable under the Act, including, the power to order on a provisional basis any relief which it would have power to grant in a final award, and to award legal fees and expenses to the prevailing party or parties. The decision and award of the arbitral tribunal shall be final and binding, and shall be enforceable by any court of competent jurisdiction in accordance with applicable Legal Requirements and international treaties. The BORG Personnel expressly waive any right under the laws of any jurisdiction to appeal or otherwise challenge the award, ruling or decision of the arbitrator.

6.2.3 Each BORG Personnel and each member of the Community: (i) hereby irrevocably and unconditionally submit to the jurisdiction of the arbitral tribunal and the courts of Delaware (or other applicable venue selected by the Board in accordance herewith) for the purpose of any Dispute, including the enforcement of any decision of the arbitral tribunal as set forth above, (ii) agrees not to commence any Dispute except in accordance with these Bylaws, including the use of binding arbitration as set forth above; and (iii) hereby waive, and agree not to assert, by way of motion, as a defense, or otherwise, in any Dispute, any claim that it is not subject personally to the jurisdiction of the arbitral tribunal or the above-named courts, that its property is exempt or immune from attachment or execution, that the suit, action or proceeding is brought in an inconvenient forum, that the venue of the suit, action or proceeding is improper or that these Bylaws or the subject matter hereof or thereof may not be enforced in or by such court.

6.2.4 THE BORG AND EACH OF THE BORG PERSONNEL HEREBY WAIVES ITS RIGHTS TO A JURY TRIAL OF ANY DISPUTE. THE SCOPE OF THIS WAIVER IS INTENDED TO BE ALL-ENCOMPASSING OF ANY AND ALL DISPUTES THAT MAY BE FILED IN ANY COURT AND THAT RELATE TO THE SUBJECT MATTER OF ANY OF THE TRANSACTIONS CONTEMPLATED BY THESE BYLAWS, INCLUDING, WITHOUT LIMITATION, CONTRACT CLAIMS, TORT CLAIMS (INCLUDING NEGLIGENCE), BREACH OF DUTY CLAIMS, AND ALL OTHER COMMON LAW AND STATUTORY CLAIMS.

6.3 Amendment; Waiver. These Bylaws may be amended and provisions may be waived (either generally or in a particular instance and either retroactively or prospectively), only as otherwise provided in these Bylaws.

6.4 Severability. Any term or provision of these Bylaws that is found invalid or unenforceable in any situation in any jurisdiction or under any law, rule or regulation (including the Corporate Statute) shall not affect the validity or enforceability of the remaining terms and provisions hereof or the validity or enforceability of the offending term or provision in any other situation or in any other jurisdiction. If a final judgment of a court of competent jurisdiction declares that any term or provision hereof is invalid or unenforceable, the court making such determination shall have the power to limit such term or provision, to delete specific words or phrases, or to replace any invalid or unenforceable term or provision with a term or provision that is valid and enforceable and that comes closest to expressing the intention of the invalid or unenforceable term or provision, and these Bylaws shall be enforceable as so modified. In the event such court does not exercise the power granted to it in the prior sentence, such court or the Board shall be empowered to replace such invalid or unenforceable term or provision with a valid and enforceable term or provision that will achieve, to the greatest extent possible, the economic, business and other purposes of such invalid or unenforceable term or provision.

6.5 Entire Agreement. These Bylaws and any other documents or agreements referred to herein or therein constitute the entire agreement and understanding with respect to the subject matter hereof and thereof, and supersedes any and all prior negotiations, correspondence, warrants, agreements, understandings duties or obligations with respect to the subject matter hereof and thereof.

6.6 Further Assurances. The BORG Personnel shall execute and deliver any further instruments or documents and to take all such further actions as may be necessary or advisable in order to carry out the intent of these Bylaws.

6.7 Rules of Construction.

6.7.1 *Gender; Etc.* For purposes of these Bylaws, whenever the context requires: the singular number shall include the plural, and vice versa; the masculine gender shall include the feminine and neuter genders; the feminine gender shall include the masculine and neuter genders; and the neuter gender shall include the masculine and feminine genders.

- 6.7.2** *Ambiguities.* The Parties hereto agree that any rule of construction to the effect that ambiguities are to be resolved against the drafting Party shall not be applied in the construction or interpretation of these Bylaws.
- 6.7.3** *No Limitation.* As used in these Bylaws, the words “include,” “including,” “such as” and variations thereof, shall not be deemed to be terms of limitation, but rather shall be deemed to be followed by the words “without limitation.” The word “or” shall mean the non-exclusive “or”.
- 6.7.4** *References.* Except as otherwise indicated, all references in these Bylaws to “Articles,” “Schedules” and “Exhibits” are intended to refer to Articles of these Bylaws and Schedules and Exhibits to these Bylaws.
- 6.7.5** *Hereof.* The terms “hereof,” “herein,” “hereunder,” “hereby” and “herewith” and words of similar import will, unless otherwise stated, be construed to refer to these Bylaws as a whole and not to any particular provision of these Bylaws.
- 6.7.6** *Captions/Headings.* The captions, headings and similar labels contained in these Bylaws are for convenience of reference only, shall not be deemed to be a part of these Bylaws and shall not be referred to in connection with the construction or interpretation of these Bylaws.
- 6.7.7** *Person.* The term “person” refers to any natural born or legal person, entity, governmental body or incorporated or unincorporated association, partnership or joint venture.

BORG BYLAWS

EXHIBIT A

Certain Defined Terms

“Base” means, at any time, the canonical blockchain and virtual machine environment of the “Layer 2” blockchain with Ethereum as its “Layer 1” known as “Base” and endorsed by Coinbase Global, Inc., a Delaware corporation or any of its subsidiaries, as recognized by at least a majority of the validators running correct versions of the go-Ethereum client (‘geth’) then being operated in good faith in the ordinary course of the network. As of the date of these Terms, the Base ‘mainnet’ is chainID:8453 within geth.

“Blockchain” means a distributed data structure consisting of hashlinked sets (‘blocks’) of transactions that is directly or indirectly produced, maintained and/or secured by the automated consensus of a network of independent nodes operating a byzantine-fault-tolerant protocol.

“Blockchain System” means the combination of:

- (a) a Blockchain; and
- (b) a network of one or more devices operating software clients or software applications that jointly or individually store, validate, process transactions with respect to, update, resolve forks with respect to or otherwise maintain, validate, read from, store data with respect to, create public proofs with respect to, or write to such Blockchain.

“Blockchain Tokens” means any virtual currency, token, or other unit of account or medium of exchange that is implemented exclusively or primarily on a Blockchain System, regardless of whether transferable, non-transferable, fungible or non-fungible.

“Community” means all natural and legal persons:

- (a) who are bona fide good faith and legitimate end-users of the Agents;
- (b) who own or have another beneficial or economic interest in the Agentic Governance Tokens (**“Agentic Governance Token Holders”**); or
- (c) who devote a substantial amount of their time or resources to researching, developing, or promoting the Agentic Protocol.

Each such person shall be deemed to be a Community member upon satisfying any one or more of the above criteria and cease being deemed to be a Community member upon satisfying none of the above criteria.

“Community Autonomous Systems”

- (a) the Community Smart Contract Systems, including the Community Module; and
- (b) if any Community Smart Contract System depends for its security or operations on another Blockchain System or any Smart Contracts thereon, such Blockchain System and Smart Contracts, but only to the extent relating to the Community Smart Contract Systems.

“Community Smart Contract System” means any Smart Contracts on Base governed in or whole in part (in upgradeability or parameters or actions) by the Community Module or otherwise considered to be a part of the ‘Curve protocol’ or ‘official Curve systems’ by the Community.

“Community Module” means the Smart Contracts on Base having the following address:

- 0x095FF74C1064d47616318a6a2dAC0Ce036410919

“Community Module Approval” means, with respect to any proposal, the affirmative vote of the requisite majority or plurality of the rightful holders of voting power within the Community Module necessary to approve or effectuate such proposal in accordance with the Governance Protocol.

“Corporate Statute” means the government statute governing the incorporation, governance and similar matters of the BORG in its jurisdiction of incorporation.

“Ethereum” means, at any time, the canonical blockchain and virtual machine environment of the Ethereum Mainnet ‘mainnet’, as recognized by at least a majority of the validators running correct versions of the go-Ethereum client (‘geth’) then being operated in good faith in the ordinary course of the network. As of the date of these Terms, the Ethereum Mainnet ‘mainnet’ is chainID:1 on networkID:1.

“Governance Protocol” means the portion of the Protocols determining the rules of voting, decisionmaking, and other governance functions of Blockchain Tokens intended to natively govern, secure, utilize or otherwise participate in production implementations of the Protocols.

“Legal Requirement” means any federal, state, local, municipal, foreign, supranational or other law, statute, constitution, treaty, directive, resolution, ordinance, code, order, writ, injunction, judgment, edict, decree, ruling, award, rule, regulation, judgment, ruling or requirement issued, enacted, adopted, promulgated, implemented or otherwise put into effect by or under the authority of any (a) nation, multinational, supranational, state, commonwealth, province, territory, county, municipality, district or other jurisdiction of any nature; (b) federal, state, provincial, local, municipal, foreign or other government; (c) instrumentality, subdivision, department, ministry, board, court, administrative agency or commission, or other governmental body, authority or instrumentality or political subdivision thereof; or (d) any quasi-governmental or private body exercising any executive, legislative, judicial, regulatory, taxing, importing or other governmental functions.

“Liquidation Event” means to liquidate, dissolve, or wind-up the BORG or its activities and affairs; effect a merger or consolidation in which the BORG is a constituent party; or effect the sale, lease, transfer, exclusive license or other disposition, in a single transaction or series of related transactions, by the BORG of all or substantially all of the assets of the BORG.

“Multisig” means a Smart Contract deployed by or on behalf of the BORG that: (a) is configured to recognize a specified set of Private Keys (the **“Multisig Private Key Set”**); and (b) one or more of the functions of which can be executed in response to a transaction message that has been signed by a specified minimum number of Private Keys belonging to such set of Private Keys.

“Multisig Private Key” means, with respect to each Multisig, each Private Key belonging to the Multisig Private Key Set recognized by such Multisig.

“Multisig Signer” means, at any time, each person who, as of such time, holds a Multisig Private Key for a Multisig; provided, however, that the term “Multisig Signer” shall not include the Community Module, notwithstanding that the Community Module may have limited powers over a Multisig.

“Private Key” means a cryptographic key that is intended to be secret and corresponds to at least one public key that: (a) is known to the BORG; and (b) constitutes a Blockchain System address.

“Protocols” means the Agentic Protocol and any other software endorsed as an official Protocol by approval of the Board, so long as such endorsement has not been revoked by the Board.

“Representational Agentic Governance Tokens” means any Blockchain Token that:

- (a) without reduction or dilution of the value of or economic, governance or other powers and benefits of Agentic Governance Tokens, is derived from or designed to represent or to be convertible with Agentic Governance Tokens (or the value of or economic, governance or other powers and benefits of such Agentic Governance Tokens) (including pursuant to any ‘liquid staking’ or similar arrangements), natively on the Community Autonomous Systems;
- (b) cannot be minted, generated, credited, assigned or otherwise come into existence without staking, converting, depositing, locking, burning or otherwise removing from circulation a proportional amount of Agentic Governance Tokens, natively on the Community Autonomous Systems; and
- (c) cannot remain in existence except while the proportional amount of Agentic Governance Tokens referred to in the preceding clause ‘(b)’ remains staked, converted, deposited, locked, burned or otherwise removed from circulation, natively on the Community Autonomous Systems.

“Smart Contract” means any executable bytecodes (commonly known as ‘smart contracts’) deployed to Blockchain Systems for operation by node operators running validators, sequencers or similar network operators.

“Votable Agentic Governance Tokens” all Agentic Governance Tokens (or Representational Agentic Governance Tokens) that have the power to vote on (or delegate voting with respect to) governance proposals in accordance with the Governance Protocol.

BORG BYLAWS

EXHIBIT B

BORG PARTICIPATION AGREEMENT

This BORG Participation Agreement (this “*Agreement*”) is being executed and delivered by the person identified in the `partyName` variable and owning the private key for the `partyBlockchainAddy` variable set during the Adoption Procedures (as defined below) (the “*Undersigned*”) and GAIB BORG, Inc., a Delaware nonprofit nonstock corporation (the “*BORG*”) as of the later date of the signatures below. Capitalized terms used but not defined herein shall have definitions that are ascribed to them in the Bylaws (as defined below).

By the execution of this Agreement, for good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Undersigned hereby covenants and agrees as follows:

1 Agreement to Bylaws.

1.1 Through the Adoption Procedures, the Undersigned is hereby adopting, joining, becoming a party to, and acknowledging and agreeing to the terms and conditions of, and becoming bound by the Bylaws of the BORG a copy of which are attached hereto as Exhibit A (the “*Bylaws*”), as a ‘BORG Personnel’ who is an ‘Agentic Multisig Signer’ of the Agentic Multisig. Without limiting the generality of the foregoing, the Undersigned hereby agrees to use all powers, privileges and rights the Undersigned may have in, under or by virtue of the Agentic Multisig solely in accordance with this Agreement, the Bylaws and for the Purposes (as defined in the Bylaws).

1.2 “*Adoption Procedures*” means that the Undersigned has called the `adoptBORGParticipationAgreement` of the Ricardian Tripler, with such calls passing a single `AgreementDetails` struct and the execution and recording of the results of such calls being finalized (within commercially reasonable norms) on Ethereum, in each case, with the `AgreementDetails` struct including arguments for each of:

(a) the name of the BORG (`BORGName` string variable);

(b) the `Party` struct variable for the Undersigned, including the blockchain address which the Undersigned uses to participate in the Multisigs (`partyBlockchainAddy` address variable), name of the Undersigned (`partyName` string variable) (which may be a pseudonym if generally known to the Community) and contact details of the Undersigned (including an email address, Telegram username, and/or other details where the Undersigned can be notified by the BORG and BORG Personnel of relevant matters electronically) (`contactDetails` string variable); and

(c) an IPFS URI of this Agreement as the `legalAgreementURI` string variable.

1.3 “*Ricardian Tripler*” means the Smart Contract at address [TO BE FILLED IN WHEN CONFIGURED FOR SIGNING] on Ethereum.

2 Compensation. The Undersigned is agreeing to serve the BORG on a volunteer basis and is not entitled to any monetary compensation from the BORG.

3 Additional Multisig Schemes. The BORG may create, and the Undersigned may participate in, multiple Multisigs, and, except to the extent otherwise expressly agreed in writing by the BORG and the Undersigned, any Multisig created by the BORG and participated in by the Undersigned as Multisig Signer therein shall automatically be deemed to be covered by the Bylaws and this Agreement.

4 Independent Contractor. The Undersigned is an independent contractor of the BORG, and nothing in this Agreement shall be construed as establishing an employment relationship between the BORG or the Undersigned (or, if the Undersigned is an entity, between the BORG and any director, officer,

manager, employee, independent contractor, shareholder, debtholder, or representative, agent or fiduciary of the Undersigned (the Undersigned's "**Representatives**").

5 Term.

5.1 The Undersigned's service to the BORG shall be "at-will" and may be terminated in accordance with the Bylaws with or without cause, without good reason, or without notice.

5.2 Upon any termination of the Undersigned's service to the BORG: (a) all of the BORG's obligations under Section 2 of this Agreement shall be deemed immediately terminated (other than the obligation to pay any accrued but unpaid amounts, pro-rated as applicable); (b) the Undersigned shall be required to use all means reasonably requested by or on behalf of the BORG to remove the Undersigned and the Undersigned's Representatives from all Multisigs; (c) the Undersigned's duties relevant to the safekeeping of the Undersigned's Key(s) shall continue until such Key has been de-permissioned from all Multisigs; and (d) all other obligations and Liabilities of the Undersigned under this Agreement and the Bylaws shall be deemed immediately terminated, waived and released, other than, if any, under the provisions of this Agreement or the Bylaws that by their nature are intended or customarily do survive a termination of contract (including confidentiality obligations) and any Liabilities for fraud (committed with scienter) or intentional and knowing breach of this Agreement or the Bylaws, which shall survive and be continuing. From and after any such termination, the Undersigned shall refrain from using the Undersigned's Key or otherwise exercising any of the rights, powers or privileges of the Undersigned under this Agreement or otherwise available to the Undersigned in connection with the Multisigs except to the extent explicitly requested otherwise in writing by the BORG.

6 No Partnership or Implied Entities/Duties/Agency. This Agreement, the Bylaws, and the matters contemplated hereby and thereby do not form, establish, or imply, and nothing contained herein or therein shall be deemed to form, establish or imply a joint venture, partnership, association, unincorporated association or other implied-at-law or implied-at-equity entity or arrangement between or involving the BORG, any of the BORG Personnel, the Undersigned, any of the Undersigned's Representatives, or the Community or any member thereof, or to create or imply any fiduciary duty or other duty not expressly set forth in this Agreement or the Bylaws other than the covenant of good faith and fair dealing under applicable contract law. None of the foregoing persons will be agent for any of the others or have any authority to make any contract, whether expressly or by implication, in the name of any the others, unless otherwise agreed in a separate written agreement between or among such persons. The Undersigned and the BORG may have other business relationships and fee arrangements with other persons, notwithstanding that such persons may conduct similar businesses or activities as or be competitive with the BORG or the Undersigned.

7 Governing Law; Dispute Resolution. Articles 6.1 and 6.2 of the Bylaws shall apply to this Agreement, *mutatis mutandis*, to determine the governing law and dispute resolution of this Agreement, as if set forth herein.

8 Notices. All notices shall be deemed sent when delivered in accordance with the

9 Successors and Assigns. The terms and conditions of this Agreement shall inure to the benefit of and be binding upon the Undersigned, the BORG, and their respective successors and assigns. Nothing in this Agreement, express or implied, is intended to confer upon any person other than the Undersigned and the BORG and their respective successors and assigns any rights, remedies, obligations or liabilities under or by reason of this Agreement, except as expressly provided in this Agreement.

10 Counterparts. This Agreement may be executed in any number of separate counterparts, each of which when executed and delivered shall be an original, but all of which together shall constitute one and the same instrument. A counterpart electronically signed via private key signature on Ethereum as described in the Adoption Procedures shall be deemed to have been duly and validly delivered and be valid and effective for all purposes.

11 Amendment. Except as otherwise expressly provided in this Agreement, any term of this Agreement may be amended, supplemented, terminated or waived only with the written consent of the BORG

and the Undersigned; *provided, however*, that any amendment hereto relating to a matter that would otherwise require an amendment to the Bylaws shall not be permitted without obtaining the same consents thereto and approvals therefor that would be required for such an amendment to the Bylaws.

- 12 Severability. Any term or provision of this Agreement that is found invalid or unenforceable in any situation in any jurisdiction shall not affect the validity or enforceability of the remaining terms and provisions hereof or the validity or enforceability of the offending term or provision in any other situation or in any other jurisdiction. If a final judgment of a court of competent jurisdiction declares that any term or provision hereof is invalid or unenforceable, the court making such determination shall have the power to limit such term or provision, to delete specific words or phrases, or to replace any invalid or unenforceable term or provision with a term or provision that is valid and enforceable and that comes closest to expressing the intention of the invalid or unenforceable term or provision, and this Agreement shall be enforceable as so modified. In the event such court does not exercise the power granted to it in the prior sentence, such invalid or unenforceable term or provision shall be replaced with a valid and enforceable term or provision that will achieve, to the extent possible, the economic, business and other purposes of such invalid or unenforceable term or provision.
- 13 Waiver; Delays or Omissions. No delay or omission to exercise any right, power or remedy by the BORG or the Undersigned, upon any breach or default by the other, shall impair any such right, power or remedy of such non-breaching or non-defaulting party, nor shall it be construed to be a waiver of any such breach or default, or an acquiescence therein, or of or in any similar breach or default thereafter occurring; nor shall any waiver of any single breach or default be deemed a waiver of any other breach or default theretofore or thereafter occurring. Any waiver, permit, consent or approval of any kind or character on the part of the BORG or the Undersigned of any breach or default under this Agreement, or any waiver on the part of the BORG or the Undersigned of any provisions or conditions of this Agreement, must be in writing and shall be effective only to the extent specifically set forth in such writing. All remedies, either under this Agreement or by law or otherwise afforded shall be cumulative and not alternative.
- 14 Parties in Interest. None of the provisions of this Agreement are intended to provide any rights or remedies to any employee, creditor or other person other than the BORG, the Undersigned and their respective permitted successors and assigns (if any).
- 15 Entire Agreement. This Agreement constitutes the full and entire understanding and agreement between the Parties with respect to the subject matter hereof, and any other written or oral agreement relating to the subject matter hereof existing between the Parties are expressly voided.
- 16 Further Assurances. Each Undersigned shall execute and cause to be delivered to BORG such instruments and other documents, and shall take such other actions, as BORG may reasonably request for the purpose of carrying out or evidencing any of the matters contemplated by this Agreement.
- 17 Rules of Construction.
 - 17.1 *Gender; Etc.* For purposes of this Agreement, whenever the context requires: the singular number shall include the plural, and vice versa; the masculine gender shall include the feminine and neuter genders; the feminine gender shall include the masculine and neuter genders; and the neuter gender shall include the masculine and feminine genders.
 - 17.2 *Ambiguities*. The Parties hereto agree that any rule of construction to the effect that ambiguities are to be resolved against the drafting party shall not be applied in the construction or interpretation of this Agreement.
 - 17.3 *No Limitation*. As used in this Agreement, the words “include,” “including,” “such as” and variations thereof, shall not be deemed to be terms of limitation, but rather shall be deemed to be followed by the words “without limitation.” The word “or” shall mean the non-exclusive “or”.
 - 17.4 *References*. Except as otherwise indicated, all references in this Agreement to “Sections,” “Schedules” and “Exhibits” are intended to refer to Sections of this Agreement and Schedules and Exhibits to this Agreement.

- 17.5 *Hereof.*** The terms “hereof,” “herein,” “hereunder,” “hereby” and “herewith” and words of similar import will, unless otherwise stated, be construed to refer to this Agreement as a whole and not to any particular provision of this Agreement.
- 17.6 *Captions.*** The captions contained in this Agreement are for convenience of reference only, shall not be deemed to be a part of this Agreement and shall not be referred to in connection with the construction or interpretation of this Agreement.
- 17.7 *Person.*** The term “person” refers to any natural born or legal person, entity, governmental body or incorporated or unincorporated association, partnership or joint venture.

BORG PARTICIPATION AGREEMENT

EXHIBIT A

BORG BYLAWS

[insert bylaws when being circulated for signature]

BORG BYLAWS
SCHEDULE 3.2.1

AGENTIC MULTISIG DESCRIPTION

1. The Blockchain System to which the Agentic Multisig is deployed;
Base
2. The network address of the Agentic Multisig on such Blockchain System:
0x2da0FF9396E7b027b570783Dc24B426F49fcb37d
3. For each Agentic Multisig Signer with respect to Agentic Multisig, at least one public key address corresponding to the Private Key of such Agentic Multisig Signer that belongs to the Private Key Set for such Agentic Multisig Signer:
0x4a249974B54755d6B28c918d33b3DcBDAfF7717C
4. The minimum number of Multisig Keys required to execute transactions through the Agentic Multisig (broken down by transaction type):
1 of 1 (all transactions)
5. Any and all abilities, powers, and rights such Agentic Multisig has with respect to any Community Autonomous Systems, including a technical and plain-English description of each function of each Community Autonomous System over which such Agentic Multisig has privileged, elevated or exclusive access, power or authority and the intended uses thereof;
N/A
6. Any and all abilities, powers, and rights the Community Module or any other Multisig, BORG, Community Autonomous System or Blockchain System has with respect to the Agentic Multisig:
Power to approve/disapprove (either unilaterally or in combination with the Board, as applicable):
 - Addition of whitelisted actions of the Agentic Multisig (all non-whitelisted actions are by default prohibited).
 - Removal of whitelisted actions of the Agentic Multisig (i.e., moving an action from permitted to prohibited).
 - Adding/removing MetaLeX OS implants (such as rate limiters etc.).
 - Exceeding rate limitations imposed by MetaLeX OS implants.
 - Calling the “dead man’s switch” so that funds are sent to MetaLeX Labs for escrow in the event of sustained inactivity of the Agentic Multisig.
7. A copy of or persistent link to the source code for Agentic Multisig.
<https://github.com/MetaLex-Tech>